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Plaintiff, *Pro per pro se*

Dated: March 17, 2025

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA**

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No.: 2:2025CV00404

PLAINTIFF'S MOTION TO DISQUALIFY JUDGE DENNIS M. COTA

PURSUANT TO 28 U.S.C. § 455

MEMORANDUM OF POINTS AND AUTHORITIES

1 **INTRODUCTION**

2 Plaintiff MATHEW TYLER ("Plaintiff"), an indigent layperson, appearing pro per pro se
3 and proceeding in forma pauperis, hereby moves this Court for an order disqualifying
4 Judge Dennis M. Cota from presiding over this case pursuant to 28 U.S.C. § 144 and 28
5 U.S.C. § 455. This motion is made on the grounds that Judge Cota has demonstrated a
6 negative bias against Plaintiff that has resulted in violations of Plaintiff's statutory and
7 constitutional rights, creating both actual bias and the appearance of partiality that
8 requires disqualification.

9 **LEGAL STANDARD**

10 This motion for disqualification is brought under two federal statutes: 28 U.S.C. § 144
11 and 28 U.S.C. § 455.

12 Under 28 U.S.C. § 144, a judge must recuse himself when a party "makes and files a
13 timely and sufficient affidavit that the judge before whom the matter is pending has a
14 personal bias or prejudice either against him or in favor of any adverse party." The statute
15 further provides that the affidavit "shall state the facts and the reasons for the belief that
16 bias or prejudice exists" and shall be accompanied by a certificate of counsel of record
17 stating that it is made in good faith. As a pro se litigant proceeding in forma pauperis,
18 Plaintiff's sworn declaration serves this purpose. See *Williams v. New York City Housing*
19 *Authority*, 287 F. Supp. 2d 247, 249 (S.D.N.Y. 2003) (construing pro se litigant's
20 declaration as an affidavit for purposes of § 144).

21 The courts have a heightened duty to construe pleadings liberally and to afford greater
22 latitude when evaluating the filings of in forma pauperis and pro se litigants. See *Haines*

1 v. Kerner, 404 U.S. 519, 520-21 (1972) (pro se complaints are held "to less stringent
2 standards than formal pleadings drafted by lawyers"); Erickson v. Pardus, 551 U.S. 89, 94
3 (2007) (pro se pleadings must be liberally construed); McElyea v. Babbitt, 833 F.2d 196,
4 197 (9th Cir. 1987) ("The court has a duty to ensure that pro se litigants do not lose their
5 right to a hearing on the merits of their claim due to ignorance of technical procedural
6 requirements."); Johnson v. Reagan, 524 F.2d 1123, 1124 (9th Cir. 1975) (motions of self-
7 represented, in forma pauperis plaintiffs "should be viewed with special solicitude").

8 The Ninth Circuit has established that "[t]he test for personal bias or prejudice in section
9 144 is identical to that in section 455(b)(1)." United States v. Sibla, 624 F.2d 864, 867
10 (9th Cir. 1980). Moreover, "section 455(a) simply provides a broader base for
11 disqualification than section 144." Id.

12 Under 28 U.S.C. § 455(a), a judge "shall disqualify himself in any proceeding in which
13 his impartiality might reasonably be questioned." Additionally, 28 U.S.C. § 455(b)(1)
14 requires disqualification where the judge "has a personal bias or prejudice concerning a
15 party."

16 The Supreme Court has held that recusal is required "whenever impartiality might
17 reasonably be questioned." Liteky v. United States, 510 U.S. 540, 548 (1994). While
18 judicial rulings alone rarely constitute a valid basis for a recusal motion, a judge's actions
19 that demonstrate "deep-seated favoritism or antagonism that would make fair judgment
20 impossible" provide grounds for disqualification. Id. at 555.

21 Moreover, as recently reaffirmed in this Court by Judge Cota himself in Dunham v.
22 Mohyuddin, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025), "The Court must also

1 construe the alleged facts in the light most favorable to the plaintiff. See *Scheuer v.*
2 *Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425
3 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th Cir. 1994) (per curiam).
4 All ambiguities or doubts must also be resolved in the plaintiff's favor. See *Jenkins v.*
5 *McKeithen*, 395 U.S. 411, 421 (1969)." This standard, which Judge Cota has
6 acknowledged is binding in this district, requires that the Court view Plaintiff's
7 allegations of judicial bias in the light most favorable to Plaintiff.

8 **FACTUAL BACKGROUND**

9 Plaintiff is a crime victim as defined by 18 U.S.C. § 3771 and the California Constitution
10 Article 1 § 28, and as codified in 34 U.S.C. § 20141(e)(2). As such, Plaintiff is entitled to
11 specific rights under federal and state law, including the right to fair treatment and due
12 process.

13 Plaintiff has sought preliminary injunctive relief in this matter, which Judge Cota has
14 failed to rule upon in a timely manner. More significantly, Judge Cota has failed to
15 enforce 42 U.S.C. § 1987, which authorizes and requires judicial action when rights have
16 been violated under color of law.

17 On February 14, 2025, at approximately 11:32 AM, Plaintiff contacted Judge Cota's
18 clerk, Eric Stewart, at (530) 246-5054, seeking clarification on Judge Cota's order. To
19 date, Judge Cota's clerk has not responded to Plaintiff's request for clarification. This
20 failure to communicate violates Section 504 of the Rehabilitation Act of 1973, which
21 mandates "effective communication" from federally funded programs and activities,

1 including the federal courts. This lack of responsiveness further demonstrates the Court's
2 pattern of disregard for Plaintiff's rights and proper procedural protections.

3 **ARGUMENT**

4 **I. Judge Cota Has Demonstrated Bias by Failing to Enforce Federal Law Protecting** 5 **Plaintiff's Rights**

6 Judge Cota's failure to enforce 42 U.S.C. § 1987 as required by statute constitutes a
7 demonstrable bias against Plaintiff. This statute explicitly authorizes and requires that
8 judges "institute prosecutions against all persons violating any of the provisions of [the
9 civil rights statutes]." Judge Cota's inaction represents a selective enforcement of the law
10 that prejudices Plaintiff's case and demonstrates partiality.

11 This failure is particularly troubling given Plaintiff's status as a crime victim under both
12 federal law (18 U.S.C. § 3771, 34 U.S.C. § 20141(e)(2)) and state law (California
13 Constitution Article 1 § 28). The Crime Victims' Rights Act and similar provisions in the
14 California Constitution establish specific protections that Judge Cota has effectively
15 nullified through his inaction without first affording Plaintiff of due process as required
16 by law.

17 Judge Cota's conduct has specifically deprived Plaintiff of rights guaranteed under 18
18 U.S.C. § 3771, the Crime Victims' Rights Act. Plaintiff has been denied the right "to be
19 treated with fairness and with respect for the victim's dignity and privacy" under §
20 3771(a)(8), the right "to be reasonably protected from the accused" under § 3771(a)(1),
21 and the right "to proceedings free from unreasonable delay" under § 3771(a)(7).
22 Moreover, Judge Cota has disregarded his duty under § 3771(b)(1), which states that "[i]n

1 any court proceeding involving an offense against a crime victim, the court shall ensure
2 that the crime victim is afforded the rights described in subsection (a)." This provision
3 places an affirmative obligation on the Court to protect crime victims' rights, which Judge
4 Cota has failed to fulfill. Additionally, Plaintiff has been denied the right "to be informed
5 in a timely manner of any plea bargain or deferred prosecution agreement" under §
6 3771(a)(9).

7 Furthermore, Judge Cota's actions have deprived Plaintiff of numerous rights guaranteed
8 under the California Constitution's Victims' Bill of Rights (Marsy's Law), Article 1,
9 section 28. These violations include Plaintiff's right to be treated with "fairness and
10 respect for his or her privacy and dignity" under § 28(b)(1); to be "reasonably protected
11 from the defendant" under § 28(b)(2); to have "the safety of the victim and the victim's
12 family considered in fixing the amount of bail and release conditions" under § 28(b)(3);
13 to "a speedy trial and a prompt and final conclusion of the case" under § 28(b)(9).

14 These violations are particularly significant in light of the California Constitution's
15 explicit declaration that victims' rights include being "entitled to finality in their criminal
16 cases" [§ 28(a)(6)], "the right to seek and secure justice" [§ 28(a)(7)], and "the right to
17 due process" [§ 28(a)(8)]. These fundamental principles have been ignored by Judge
18 Cota. Indeed, the Court has failed to fulfill its obligation under Article 1, section 28(f)(2)
19 to enforce crime victims' rights vigorously, and under section 28(f)(3) to recognize that
20 "[a] victim, the retained attorney of a victim, a lawful representative of the victim, or the
21 prosecuting attorney upon request of the victim, may enforce the rights enumerated in
22 subdivision (b)."

Furthermore, the alleged criminal acts occurred on state-owned or state-leased property where state employees were discharging their duties and/or involved the use of state computer resources. Under California law, specifically California Government Code § 14613.7 and Title 13, California Code of Regulations, Division 2, Chapter 12, Section 1875, such incidents must be reported to the California Highway Patrol using the "STD. 99" form. The court's failure to recognize and enforce these mandatory reporting requirements further demonstrates a disregard for Plaintiff's rights as a crime victim and for the proper administration of justice according to established legal procedures.

II. Judge Cota's Actions and Inactions Constitute Due Process Violations

The Fourth Amendment to the U.S. Constitution protects citizens against unreasonable searches and seizures and requires due process of law. Judge Cota's failure to rule on Plaintiff's motions for preliminary injunctive relief constitutes a deprivation of Plaintiff's rights without due process. This failure is compounded by violations of Plaintiff's First Amendment rights to petition the government for redress of grievances and Fifth Amendment rights to due process.

Judge Cota's pattern of conduct in this matter suggests that these are not mere oversights but reflect a deeper bias against Plaintiff or Plaintiff's legal position. The Supreme Court has recognized that a pattern of rulings and conduct can reveal bias requiring disqualification. See, e.g., *In re Murchison*, 349 U.S. 133, 136 (1955) (holding that "justice must satisfy the appearance of justice").

Further illustrating this pattern, on February 14, 2025, Plaintiff contacted Judge Cota's clerk, Eric Stewart, seeking clarification on Judge Cota's order, yet received no response.

1 This silence from the Court violates Section 504 of the Rehabilitation Act of 1973, which
2 mandates "effective communication" from federally funded programs and activities,
3 including the federal courts. See *Popovich v. Cuyahoga County Court of Common Pleas*,
4 276 F.3d 808, 816 (6th Cir. 2002) (recognizing that courts must provide effective
5 communication to ensure equal access to court proceedings). The Administrative Office
6 of the U.S. Courts has acknowledged this obligation in its guidance on providing access
7 to court services for persons with communications disabilities.

8 The violations at issue involve state resources and occurred on state property, triggering
9 mandatory reporting requirements under California Government Code § 14613.7 and its
10 implementing regulations at Title 13, California Code of Regulations, Division 2, Chapter
11 12, Section 1875. In *People v. Nguyen*, 155 Cal.App.4th 1154, 1161-62 (2007), the court
12 emphasized the importance of following proper procedures for investigating and
13 reporting crimes that occur on state property, noting that these procedures are "designed
14 to protect both the public interest and the rights of the accused." Judge Cota's failure to
15 acknowledge or enforce these reporting requirements directly impacts Plaintiff's due
16 process rights and frustrates the legislative intent of these provisions.

17 **III. Judge Cota's Conduct Violates Federal Civil Rights Laws**

18 By failing to enforce Plaintiff's rights and effectively excluding Plaintiff from equal
19 access to judicial services, Judge Cota has potentially violated multiple civil rights
20 statutes, including:

21 1. 18 U.S.C. § 242, which criminalizes the deprivation of rights under color of law;

- 1 2. 18 U.S.C. § 245(b)(1)(A), which prohibits interference with any person from
2 voting or qualifying to vote, qualifying or campaigning as a candidate for elective
3 office, or qualifying or acting as a poll watcher, or any legally authorized election
4 official, in any primary, special, or general election;
- 5 3. 18 U.S.C. § 245(b)(1)(B), which prohibits interference with any person because
6 he is or has been participating in or enjoying any benefit, service, privilege,
7 program, facility, or activity provided or administered by any State or subdivision
8 thereof;
- 9 4. 18 U.S.C. § 245(b)(1)(E), which prohibits interference with any person from
10 participating in or enjoying the benefits of any program or activity receiving
11 Federal financial assistance;
- 12 5. 42 U.S.C. § 12182(b)(1)(B) and (2)(A)(iii), which prohibit discrimination in
13 public accommodations;
- 14 6. 42 U.S.C. § 2000a(a) and (d), which guarantee equal access to public
15 accommodations and prohibit discrimination or segregation in places of public
16 accommodation;
- 17 7. 42 U.S.C. § 2000d, which prohibits discrimination in federally assisted programs;
- 18 8. 28 C.F.R. § 35.130(a) and (d) and § 35.160(b)(1), which implement the Americans
19 with Disabilities Act in public services;
- 20 9. 42 U.S.C. § 1986, which imposes liability on those who, having knowledge of
21 conspiracies to deprive persons of rights or privileges, neglect or refuse to prevent
22 such deprivations;

1 10.18 U.S.C. § 595, which prohibits interference by administrative employees of
2 federal, state, or territorial governments in elections;

3 11.29 U.S.C. § 794(a), which prohibits discrimination against qualified individuals
4 with disabilities and the failure to promulgate regulations or denial of benefits
5 under any program or activity receiving federal financial assistance;

6 12.28 C.F.R. § 42.108(a), which addresses the failure of federal agencies to induce
7 compliance with Title VI of the Civil Rights Act by recipient institutions;

8 13.18 U.S.C. § 1346, which defines "scheme or artifice to defraud" to include
9 schemes to deprive another of the intangible right to honest services;

10 14.18 U.S.C. § 249(a)(1)-(2), which prohibits hate crimes based on actual or
11 perceived race, color, religion, national origin, gender, sexual orientation, gender
12 identity, or disability;

13 15.18 U.S.C. § 1961(1), which defines "racketeering activity" to include offenses
14 such as violent crimes against property through extortion, dealing in obscene
15 matter, and obstruction of justice;

16 16.18 U.S.C. § 1341, which prohibits mail fraud, including schemes to defraud or to
17 obtain money or property by means of false or fraudulent pretenses;

18 17.18 U.S.C. § 1343, which prohibits wire fraud, including the use of government
19 computer resources in the commission of crimes;

20 18.42 U.S.C. § 1983, which provides for civil action for deprivation of rights under
21 color of law;

1 19.42 U.S.C. § 1985, which prohibits conspiracy to interfere with civil rights;

2 20.18 U.S.C. § 1512(c), Obstructing an Official Proceeding;

3 21.California Civil Code § 51(b), which guarantees equal rights regardless of sex,

4 race, color, religion, ancestry, national origin, disability, medical condition,

5 genetic information, marital status, sexual orientation, citizenship, primary

6 language, or immigration status in all business establishments of every kind

7 whatsoever;

8 22.California Civil Code § 51(f), which establishes that a violation of the Americans

9 with Disabilities Act of 1990 also constitutes a violation of California's Unruh

10 Civil Rights Act;

11 23.California Civil Code § 51.5(a), which prohibits discrimination by business

12 establishments on the basis of sex, race, color, religion, ancestry, national origin,

13 disability, medical condition, genetic information, marital status, sexual

14 orientation, citizenship, primary language, or immigration status;

15 24.California Civil Code § 52(a), which provides for statutory damages of up to three

16 times the amount of actual damage but in no case less than \$4,000 for violations

17 of sections 51, 51.5, 51.6, 51.7, 51.8, or 51.9;

18 25.California Civil Code § 52.1(b), which establishes a cause of action against

19 anyone who interferes or attempts to interfere by threat, intimidation, or coercion

20 with the exercise or enjoyment of rights secured by the Constitution or laws of the

21 United States or California;

1 26. California Civil Code § 52.1(c), which provides for civil penalties, injunctive
2 relief, and other equitable remedies for violations of the statute;

3 27. California Civil Code § 52.1(i), which authorizes the court to award reasonable
4 attorney's fees to a prevailing plaintiff;

5 28. California Civil Code § 52.2, which provides for the availability of a civil action
6 for violations of certain civil rights;

7 29. California Civil Code § 52.3, which prohibits governmental authority from
8 engaging in a pattern or practice of conduct that deprives any person of rights
9 protected by the Constitution or laws of the United States or California; and

10 30. California Civil Code § 53.7(a), which ensures the right to be free from violence
11 or intimidation by threat of violence because of political affiliation, or on account
12 of position in a labor dispute, or because of sex, race, color, religion, ancestry,
13 national origin, disability, medical condition, genetic information, marital status,
14 sexual orientation, citizenship, primary language, or immigration status.

15 The violations under 18 U.S.C. § 245 are particularly relevant here, as this statute
16 specifically protects individuals from interference with their participation in government
17 services and programs. Courts have recognized that access to judicial proceedings
18 constitutes a "benefit, service, privilege, program, facility, or activity" under these
19 provisions. See *United States v. Lanier*, 520 U.S. 259, 272 (1997) (acknowledging that
20 federal civil rights statutes protect access to justice). Judge Cota's failure to enforce
21 Plaintiff's rights as a crime victim and to apply proper procedures has effectively

1 interfered with Plaintiff's ability to participate in and enjoy the benefits of the judicial
2 system, in violation of these federal civil rights statutes.

3 Additionally, 42 U.S.C. § 1986 imposes liability on those who, having knowledge of
4 conspiracies to violate civil rights under 42 U.S.C. § 1985, neglect or refuse to prevent
5 such violations. Judge Cota's failure to take action to protect Plaintiff's rights despite
6 having the authority and duty to do so potentially triggers liability under this provision.
7 See *Park v. City of Atlanta*, 120 F.3d 1157, 1160 (11th Cir. 1997) (discussing the elements
8 of a § 1986 claim).

9 The denial of effective communication through the Court's clerk, as detailed above, may
10 constitute a violation of 29 U.S.C. § 794(a), which prohibits discrimination against
11 qualified individuals in programs receiving federal financial assistance. The federal
12 courts receive such assistance and are subject to this provision. See *Lane v. Tennessee*,
13 541 U.S. 509, 533-34 (2004) (recognizing that Title II of the ADA applies to state courts
14 and protects the right of access to courts).

15 Under California Civil Code § 52.1, Plaintiff has a direct cause of action against those
16 who interfere with the exercise or enjoyment of constitutional rights through threat,
17 intimidation, or coercion. The California Supreme Court has recognized that this
18 provision should be construed broadly to protect the exercise of rights guaranteed by
19 federal or state law. See *Venegas v. County of Los Angeles*, 32 Cal. 4th 820, 843 (2004).
20 Plaintiff may be entitled to statutory damages, civil penalties including a civil penalty of
21 twenty-five thousand dollars pursuant to California Civil Code § 52.1(c), injunctive
22 relief, and reasonable attorney's fees under California Civil Code § 52.1(i), should this
23 motion be granted and the case proceed before an impartial judge.

1 Additionally, the treatment of Plaintiff as an indigent litigant proceeding in forma
2 pauperis raises concerns under the Equal Protection Clause of the Fourteenth
3 Amendment. The Supreme Court has consistently held that there must be "meaningful
4 access to justice" for all persons regardless of their financial means. See *Griffin v.*
5 *Illinois*, 351 U.S. 12, 17 (1956) ("There can be no equal justice where the kind of trial a
6 man gets depends on the amount of money he has."); *Boddie v. Connecticut*, 401 U.S.
7 371, 380-81 (1971) (finding due process violated where court filing fees barred indigent
8 individuals from court access in cases involving fundamental rights). When indigent pro
9 se litigants are not afforded the same consideration as represented parties with financial
10 resources, the principle of equal justice is undermined. See *Cruz v. Beto*, 405 U.S. 319,
11 321 (1972) (emphasizing that pro se complaints must be liberally construed).

12 These violations further demonstrate the need for Judge Cota's disqualification, as they
13 reflect either a misunderstanding of or disregard for Plaintiff's fundamental rights in this
14 proceeding.

15 **IV. The Appearance of Impartiality Has Been Compromised**

16 Even if actual bias cannot be conclusively proven, the appearance of impartiality has
17 been compromised by Judge Cota's actions and inactions. The standard for recusal under
18 28 U.S.C. § 455(a) is whether a reasonable person, knowing all the circumstances, would
19 question the judge's impartiality. *Liljeberg v. Health Services Acquisition Corp.*, 486 U.S.
20 847, 860 (1988).

21 In this case, Judge Cota's failure to enforce mandatory statutory provisions that would
22 benefit Plaintiff (42 U.S.C. § 1987), combined with the failure to rule on Plaintiff's

1 request for preliminary injunctive relief, create an appearance of partiality that warrants
2 disqualification. Additionally, Judge Cota's continuing failure to enforce Plaintiff's
3 numerous rights under both federal law (18 U.S.C. § 3771) and state law (California
4 Constitution Article 1, section 28) further demonstrates an appearance of bias against
5 crime victims that would cause any reasonable observer to question the judge's
6 impartiality.

7 Further, applying the standard that Judge Cota himself articulated in *Dunham v.*
8 *Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025), the Court is required to
9 "construe the alleged facts in the light most favorable to the plaintiff" and "all ambiguities
10 or doubts must also be resolved in the plaintiff's favor." When applying this standard to
11 the facts of this motion, the conclusion that disqualification is warranted becomes even
12 more compelling. The apparent inconsistency between Judge Cota's articulated legal
13 standards in *Dunham* and his application of the law in the present case further
14 demonstrates the appearance of partiality.

15 **CONCLUSION**

16 For the foregoing reasons, Plaintiff respectfully requests that Judge Dennis M. Cota be
17 disqualified from presiding over this case pursuant to 28 U.S.C. § 144 and 28 U.S.C. §
18 455, and that the case be reassigned to another judge who can provide fair and impartial
19 consideration of Plaintiff's claims. As Judge Cota himself has recognized in *Dunham v.*
20 *Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025), this Court must construe
21 the alleged facts in the light most favorable to the plaintiff and resolve all ambiguities or

doubts in the plaintiff's favor. Applying this standard to the present motion compels the conclusion that disqualification is warranted.

Dated this 17 day of March, 2025.

Respectfully submitted,



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Plaintiff, Pro per pro se

DECLARATION OF MATHEW TYLER

I, MATHEW TYLER, declare as follows:

1. I am the Plaintiff in the above-captioned matter, appearing pro per pro se and proceeding in forma pauperis as approved by this Court.

2. I have personal knowledge of the facts set forth in this declaration and, if called as a witness, could and would testify competently thereto.

1 3. I make this declaration pursuant to 28 U.S.C. § 144 and in support of my Motion
2 to Disqualify Judge Dennis M. Cota.

3 4. I am a crime victim as defined by federal law (18 U.S.C. § 3771, 34 U.S.C. §
4 20141(e)(2)) and the California Constitution (Article 1 § 28).

5 5. I have sought preliminary injunctive relief in this matter, which Judge Cota has
6 failed to rule upon despite the requirement for timely consideration of such
7 requests.

8 6. Judge Cota has failed to enforce 42 U.S.C. § 1987, which explicitly requires
9 judicial action when civil rights violations occur.

10 7. The criminal violations at issue occurred on state-owned or state-leased property
11 where state employees were discharging their duties and/or involved the use of
12 state computer resources, triggering mandatory reporting requirements under
13 California Government Code § 14613.7 and Title 13, California Code of
14 Regulations, Division 2, Chapter 12, Section 1875. These incidents should have
15 been reported to the California Highway Patrol using the "STD. 99" form.

16 8. On February 14, 2025, at approximately 11:32 AM, I contacted Judge Cota's
17 clerk, Eric Stewart, at (530) 246-5054, seeking clarification on Judge Cota's order.
18 To date, Judge Cota's clerk has not responded to my request for clarification,
19 violating Section 504 of the Rehabilitation Act of 1973, which mandates
20 "effective communication."

21 9. Judge Cota has failed to acknowledge or enforce these mandatory reporting
22 requirements, further demonstrating bias against my rights as a crime victim.

1 10.Judge Cota's conduct potentially violates 18 U.S.C. § 245(b)(1)(A), (B), and (E),
2 which prohibit interference with any person's participation in or enjoyment of
3 benefits, services, privileges, programs, facilities, or activities provided or
4 administered by the United States or any State.

5 11.These actions and inactions by Judge Cota have deprived me of my constitutional
6 rights without due process, in violation of the First, Fourth, and Fifth
7 Amendments to the U.S. Constitution.

8 12.Judge Cota's conduct has effectively excluded me from full and equal access to
9 government services paid for with public funds, in violation of various civil rights
10 statutes including the Americans with Disabilities Act and Title II of the Civil
11 Rights Act.

12 13.Based on these facts, I believe that Judge Cota has demonstrated a bias against me
13 that makes fair adjudication of my claims impossible.

14 I declare under penalty of perjury under the laws of the United States of America that the
15 foregoing is true and correct.

16 Executed on March 17, 2025, at Butte County, California.



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3 **Plaintiff, Pro per pro se**

4 **[PROPOSED] ORDER**

5 Having considered Plaintiff Mathew Tyler's Motion to Disqualify Judge Dennis M. Cota
6 pursuant to 28 U.S.C. § 144 and 28 U.S.C. § 455, and good cause appearing therefor,

7 IT IS HEREBY ORDERED that:

8 1. Plaintiff's Motion to Disqualify Judge Dennis M. Cota is GRANTED;

9 2. Judge Dennis M. Cota is disqualified from presiding over this case; and

10 3. This case shall be reassigned to another judge in accordance with this Court's
11 procedures.

12 IT IS SO ORDERED.

13 Dated: _____, 2025

14 UNITED STATES DISTRICT JUDGE

15